

**22CV46224 - LAWRENCE J. SARKIS**

**Plaintiff/Cross-Defendant**

**v.**

**ANGELS GUN CLUB; DAVID VERHALEN**

**Defendants/Cross-Complainants**

**DEFENDANT’S MOTION FOR SUMMARY JUDGMENT**

**TENTATIVE RULING**

Before the Court is a motion for summary judgment filed by Defendant/Cross-Complainant Angels Gun Club, Inc (“AGC”) and David Verhalen (collectively “Defendants”) against Plaintiff/Cross-Defendant Lawrence J. Sarkis (“Plaintiff”) as to Plaintiff’s Complaint.

As set forth below, the Court denies the motion for summary adjudication. The Court grants Plaintiff’s unopposed Request for Judicial Notice.

**I. Factual Background**

On December 13, 2021, Plaintiff, AGC, David Richards (“Richards”), Kathleen Bachelor, and each of AGC’s then acting board members executed a Settlement Agreement and Mutual Release of All Claims to settle previous litigation initiated by Sarkis against AGC (“Agreement.”) (Declaration of Makayla A. Whitney (“Whitney Decl.”) ¶ 2.) The previous litigation stemmed from Plaintiff’s alleged wrongful expulsion from AGC and claims of mismanagement by AGC’s board of directors. (Declaration of Lawrence Sarkis (“Sarkis Decl.”) ¶ 2.)

The Agreement that is the subject of this action contains Clause 3(i) which states:

In further consideration of this Agreement, AGC will provide copies of the following documents to Plaintiff Richards or another AGC member designated by Plaintiff Richards upon written request of such member for five (5) years following the Effective Date: annual profit & loss statements, annual revenue reports and annual expense reports.

(Plaintiff UMF (“PUMF”) 1.) As part of the Agreement, Plaintiff would no longer be a member of AGC. (PUMF 2.) Further, in compliance with the Agreement, Plaintiff dismissed his court cases against AGC (PUMF 10), relinquished his claim to be reinstated as a member of AGC (PUMF 11) and has not reapplied for membership in AGC (PUMF 12.)